

Satishchandra Purshottam Kale vs Anjusha Satishchandra Kale And Anr on 2 August, 2022

Author: Prakash D. Naik

Bench: Prakash D. Naik

7-CP-474-2019.doc

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION
CONTEMPT PETITION NO. 474 OF 2019

Satishchandra Purshottam Kale ...Petitioner
Versus
Anjusha Satishchandra Kale And Anr. ...Respondents

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Mr. Hitesh P. Vyas, Advocate for the Petitioner.
Ms. Anjusha S. Kale, Advocate for the Respondent No.1 in Person.

CORAM : PRAKASH D. NAIK, J.

DATE : 2nd AUGUST, 2022.

PER COURT:

1. After deliberations both the parties have agreed for settlement and executed consent terms. As per the contents of consent terms the petitioner has produced demand draft in the sum of Rs.10,00,000/- issued in the name of Registrar Appellate Side, High Court, Mumbai. The said demand draft may be deposited in the registry of this Court along with this order. The demand draft is retained to with petitioner for depositing it in this Court. The petitioner has agreed to deposit further amount of Rs.15,00,000/- by 10th August, 2022. The petitioner is permitted to deposit the said amount in the registry of this Court by 10th August, 2022.

2. The aforesaid amount of Rs.25,00,000/- is permitted to be withdrawn by the Respondent Anjusha Satishchandra Kale after the the said amount is deposited by the petitioner as and by way of Sunny Thote 1 of 2 7-CP-474-2019.doc part payment towards the permanent alimony. The further terms of agreement between both the sides has been stipulated in the consent terms. The consent terms are taken on record and marked as 'X' for identification. In the event for some reasons the consent terms cannot be fulfilled then the Respondent Anjusha Satishchandra Kale has agreed to re-deposit the amount of Rs.25,00,000/- within fifteen days from the date of failure of consent terms in this Court. The statement is accepted as an undertaking to this Court. The terms stipulated in the consent terms are to be fulfilled by both the sides within period of three months from today i.e. on or before 1 st November, 2022. This petition is kept pending and it shall be listed on board on

9th November, 2022.

3. In view of the consent terms executed between the parties the family Court is requested to waive mandatory period of six months for deciding the divorce petition and to proceed with passing the decree under Section 13-B of the Hindu Marriage Act, as agreed by both the parties. It is expected that both the parties will adhere the consent terms.

(PRAKASH D. NAIK, J.)

Sunny Thote

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